

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Stay-Dissolution and Release Order

Entered August 5, 2026

On July 6, the Court granted the City of Norvale a limited stay of the mandate through August 5, 2026, while the City considered a petition for a writ of certiorari. The order required written notice by today of a filed petition, a granted extension of the filing period, or a decision not to proceed. It also stated that silence would not continue the stay beyond the fixed date.

The City has notified the clerk that no certiorari petition has been filed and that it obtained no extension. It does not request continuation. The Piedmont Booksellers Guild asks that the mandate issue without further delay. The purpose of the short stay has ended, and no basis appears for retaining appellate jurisdiction after the agreed interval.

The July 6 mandate stay is therefore DISSOLVED. This order terminates a stay that was granted under Federal Rule of Appellate Procedure 41(d); it is not an order denying the original motion. The seven-day calculation following denial in Rule 41(b) does not create a new waiting period after this dissolution. Exercising the authority to set the time of issuance, the Court directs the clerk to release the mandate today. Existing preliminary protection remains governed by the June 18 judgment until the district court enters the superseding compliant order required on remand.

The clerk shall issue the mandate on August 5, 2026, and it shall take effect when issued under Rule 41(c). The mandate shall carry the certified judgment, the accompanying opinion, and the costs direction. Its release returns authority to the district court to implement the limited instructions concerning Federal Rules of Civil Procedure 65(c) and (d) and to continue management of the unresolved merits.

No Supreme Court disposition is before this Court, and this order makes no prediction about any later application a party might attempt. It resolves only the mandate stay presently on the docket. The June 18 affirmance of preliminary entitlement and limited corrective remand remain intact. Neither this release direction nor expiration of the stay changes the rule that the January 23 injunction continues until a compliant replacement enters.

The clerk has confirmed that no rehearing petition, superseding mandate-stay order, or other directive now prevents issuance. Notice of this order shall be sent electronically to appellate counsel and to the district clerk. The appellate record will be transmitted or returned as required by the Court's procedures. Entered by the panel on August 5, 2026, with immediate release authorized for the same date.